

Court No. - 21

Case :- WRIT - C No. - 1802 of 2018

Petitioner :- Syed Muzaffar Ali

Respondent :- M.D. Uttar Pradesh Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Vijay Tripathi, Rajeev Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Put up as fresh on 24.01.2018, by which time, learned counsel for the respondents nos. 2 and 3 shall seek instructions in the matter.

Order Date :- 16.1.2018

Ashish Tripathi

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Counsel for Petitioner :- Vijay Tripathi, Rajeev Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Shailendra Kumar Agrawal, J.

On the joint request made by the learned counsel for the parties put up on 8.2.2018.

Order Date :- 1.2.2018

OP

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Petitioner :- Syed Muzaffar Ali

Respondent :- M.D. Uttar Pradesh Power Corporation Ltd. And 4 Others

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Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

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Petitioner has approached this court challenging the recovery citation issued against him for recovery of the outstanding electricity dues. Learned counsel for the petitioner, at the outset, submitted that he does not intend to contest the case on merits but he is ready and willing to deposit the entire amount, if he is permitted to do so in instalments.

Sri Chandan Agarwal holding brief of Sri Baleshwar Chaturvedi who has accepted notice on behalf of respondent Nos.2 and 3, referring to clause 6.14 of the Electricity Supply Code, 2005 contends that the petitioner can approach the relevant authority under Clause-6.14 for making payment of the outstanding dues in instalments. Clause-6.14 of the Code confers power upon the licensee to extend the facility of instalments to those consumers who are in financial distress.

Since the petitioner has a remedy available under Clause 6.14 of the Electricity Supply Code, 2005, we dispose of the writ petitioner by providing that the petitioner may approach the concerned authority for making repayment of the outstanding dues in instalments before the Executive Engineer or such other competent authority within a period of two weeks from today with a direction to the said authority that in case such an application is made, he shall decide the same in accordance with law by a reasoned and speaking order within a further period of four weeks from the date of making of the application.

For a period of six weeks from today or till disposal of application filed by the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance to the impugned recovery.

Order Date :- 8.2.2018

Ashutosh